

questions about the trustor's capacity during the original litigation brought by Gloria Weeks in 2020 (case number FPR050261). The petitioner shall explain why she did not join in the litigation brought by Gloria Weeks.

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**IN THE MATTER OF GERTIE MARIE WILLIAMS
PR26-00036**

Verified Petition Under Probate Code §850 For Accounting, Determination of Property Ownership, and Review of Fiduciary Conduct

PREGRANT ORDER

The court continued this matter from March 4, 2026 and May 13, 2026. No documents have been filed to resolve the issues since the last hearing.

The court on its own motion continues this hearing to August 26, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing the petitioner shall resolve the following issues:

1. The petitioner used an incorrect Notice of Hearing form (DE-120). The petition seeks relief under Probate Code § 850 which requires the use of the Notice of Hearing to Determine Claim to Property (DE-115).
 2. There is no Proof of Service on file showing all those entitled to notice have received it per Probate Code section 4544, including the attorney-in-fact and the principal.
 3. There is no Proof of Service showing all those entitled to notice have received it per Probate Code section 850.
 4. The petitioner is not listed as a current trustee of the trust. The settlors/original trustees are both alive. The petitioner shall explain her standing to bring a petition requesting an accounting for a revocable trust per Probate Code section 16069.
 5. The initials on the Durable Power of Attorney appear to be LP, which would be Lazarus Pete and not Gertie Williams. The petitioner shall explain how the DPOA is valid with the initials of someone other than the principal.
 6. The revocable trust was executed in July 2017 and the Schedule A included the real property. The petitioner shall explain why the real property should not be considered a trust asset.
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